Galveston County District Court

Cause No. 2024-CV-0019

Vincent Bryant, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	7-26-24
Counsel for defendant:	Richard Marshall, Ashford & Lyle LLP

Defendant denies each and every allegation contained in Plaintiff's Original Petition, except those allegations expressly admitted herein, and demands strict proof thereof as required by the Texas Rules of Civil Procedure. Pursuant to Rule 92, Defendant generally denies each allegation and requests that Plaintiff be required to prove the charges and allegations against Defendant by a preponderance of the evidence.

As affirmative defenses, Defendant asserts the following. First, the collision was a low-speed impact, and Plaintiff's claimed injuries were not caused by the occurrence in question but by preexisting conditions or subsequent events unrelated to it. Second, Plaintiff failed to exercise ordinary care for her own safety, and her own negligence proportionately reduces or bars any recovery under Chapter 33 of the Texas Civil Practice and Remedies Code. Third, Plaintiff failed to mitigate her alleegd damages by timely pursuing reasonable medical care and treatment, and any recovery must be redcued accordingly.

Defendant reserves the right to amend this Answer as disocvery proceeds.